

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PINELLAS COUNTY, FLORIDA
CIVIL DIVISION**

DENNIS M. HEWETT, as Personal
Representative of the Estate of

RICHARD W. MELILLO a/k/a RICHARD W. CASE NO.: 26-002613-CI
RADKA, a/k/a RICK RADKA, a/k/a
RICHARD W. KWAST, DIVISION: SECTION 11

Plaintiff,

v.

BRANDI ROGERS, and all those claiming
by, through or under said individual(s),

Defendants.

_____ /

**DEFENDANT'S VERIFIED MOTION TO SET ASIDE CLERK'S DEFAULT
AND TO ACCEPT DEFENDANT'S ANSWER, WITH INCORPORATED
MEMORANDUM OF LAW**

Defendant, BRANDI LYNN RODGERS (incorrectly named in the caption as "Brandi Rogers"), self-represented, respectfully moves this Court pursuant to Florida Rule of Civil Procedure 1.500(d) to set aside the Clerk's Default entered against her on June 29, 2026, and to accept the Answer and Affirmative Defenses tendered with this Motion, and in support states:

The Facts

1. Defendant was served with process on **June 4, 2026** (Summons Return of Service, docketed June 8, 2026). Her response was therefore due on or about **June 24, 2026**.
2. On **June 11, 2026, at 7:55 p.m. — the seventh day after service —** Defendant, acting in good faith and without an attorney, submitted her

"Answer, Defenses, Counterclaims and Jury Demand," captioned for this case, No. 26-002613-CI, through the Florida Courts E-Filing Portal, Filing No. 250196245. (Composite **Exhibit 1**: Portal "Filing Received" confirmation dated June 11, 2026.)

3. Due to a self-represented filer's error in the Portal's case-selection screen, the submission was routed into the related probate case, *In re: Estate of Richard Melillo*, No. 26-000874-ES — a case this Court's own docket cross-references as related — rather than into this civil case. The Portal nonetheless **e-served the Answer that same day on Plaintiff's counsel's firm**, DeLoach, Hofstra & Cavanis, P.A., including Michael D. Cavanis, Esq., and three firm staff. (**Exhibit 2**: Portal Notice of Service of Court Documents listing the served recipients.)
4. On **June 15, 2026**, the Clerk placed the filing in the Portal Correction Queue with the instruction: "**APPEARS TO BE FILED INTO THE WRONG CASE. RESUBMIT INTO CIVIL CASE**," allowing thirty days to correct. (**Exhibit 3**.) The same day, the Clerk accepted and docketed Defendant's companion probate filing (a witness's sworn Proof of Execution). (**Exhibit 4**.)
5. On **June 29, 2026**, Defendant resubmitted the filing within the correction window. (**Exhibit 5**: "Corrected Filing Received," June 29, 2026, 11:54 a.m.) That same day, Plaintiff moved for a clerk's default and the Clerk entered one — while Defendant's timely-submitted Answer sat in the Clerk's own correction queue pursuant to the Clerk's June 15 instruction.
6. Within hours of receiving Plaintiff's motion by email, Defendant objected in writing to Plaintiff's counsel, advised that she had responded on June 11, 2026, offered the e-filing confirmation, and asked that the motion be withdrawn. (**Exhibit 6**: correspondence of June 29–30, 2026, including the June 30 reply of Gabrielle M. Englander, Esq.)
7. On **July 1, 2026**, the Clerk's office returned Defendant's resubmission solely on account of the \$395 counterclaim fee. (**Exhibit 7**.) Defendant tenders with this

Motion an Answer and Affirmative Defenses without counterclaims, for which no filing fee is imposed. § 28.241(3), Fla. Stat.

8. Defendant's tendered **Answer and Affirmative Defenses**, with the chain-of-title statement and copies of the instruments on which she relies attached as required by § 66.021(7), Florida Statutes, is attached as **Exhibit 8** and is substantially identical to the responsive pleading submitted June 11, 2026.

Memorandum of Law

9. **Standard.** Under Rule 1.500(d) the Court may set aside a default. Florida public policy strongly favors adjudication on the merits: "if there be any reasonable doubt in the matter [of vacating a default], it should be resolved in favor of granting the application and allowing a trial upon the merits." *North Shore Hospital, Inc. v. Barber*, 143 So. 2d 849, 853 (Fla. 1962). Courts are especially liberal where, as here, the default is a pre-judgment clerk's default. The movant shows (1) excusable neglect, (2) a meritorious defense, and (3) due diligence.
10. **Excusable neglect.** Defendant did not ignore this action — she answered it within seven days of service, and the record proves it: the Portal receipt (Ex. 1), same-day e-service on Plaintiff's firm (Ex. 2), and the Clerk's own correction notices (Exs. 3, 5, 7). A responsive pleading misdirected between two related, cross-referenced cases by an unrepresented party, and thereafter handled within the Clerk's own correction procedure, is precisely the kind of "clerical or secretarial error, reasonable misunderstanding, . . . [or] system gone awry" that constitutes excusable neglect. *Somero v. Hendry Gen. Hosp.*, 467 So. 2d 1103, 1106 (Fla. 4th DCA 1985); see *Elliott v. Aurora Loan Servs., LLC*, 31 So. 3d 304 (Fla. 4th DCA 2010).
11. **The tendered Answer relates back to June 11, 2026 — before both the response deadline and the default.** Under Florida Rule of General Practice and Judicial Administration 2.525(f)(2)(A) (as amended effective July 1, 2025),

a filer whose document has been placed in the correction queue may "file a new document that remedies the reasons stated in the notice but is otherwise substantially identical, which if successfully filed, relates back to the date of the unsuccessful filing attempt." The tendered Answer remedies the noticed defect — the wrong case — exactly as the Clerk's June 15 notice instructed, and is otherwise substantially identical. It therefore relates back to June 11, 2026, a timely date. An answer deemed filed before entry of default defeats the default. Fla. R. Civ. P. 1.500(c) ("A party may plead or otherwise defend at any time before default is entered.").

12. **No surprise, no prejudice.** Plaintiff's counsel's firm received Defendant's Answer by Portal e-service on June 11, 2026 (Ex. 2) and corresponded with Defendant about her defense (Ex. 6). Deciding this case on its merits prejudices no one; enforcing the default would work an extreme forfeiture — the loss of Defendant's home of many years — because of a docketing error the Clerk had already given Defendant leave to correct.
13. **Meritorious defense.** The tendered Answer pleads, among other defenses: (a) that on September 13, 2025, the decedent executed an enhanced life estate ("Lady Bird") deed conveying the remainder interest in the subject property to Defendant effective upon his death, signed before two subscribing witnesses, one of whom has executed a sworn Proof of Execution already accepted for filing in the related probate case on June 15, 2026; (b) that upon the decedent's death the remainder vested in Defendant by operation of law, outside probate; (c) that, independently, the property was the decedent's protected homestead, which is not an asset of the estate, and a personal representative has no right to its possession, §§ 733.607(1), 733.608(1)–(2), Fla. Stat.; *Clifton v. Clifton*, 553 So. 2d 192, 194 n.3 (Fla. 5th DCA 1989); and (d) that in ejectment the plaintiff must recover on the strength of his own title, *Florida Finance Co. v. Sheffield*, 48 So. 42 (Fla. 1908). Defendant notes that the decedent's own title arrived by the identical form of instrument: a recorded 2020 enhanced life estate deed

from William F. Melillo reserving a life estate with remainder to the decedent (OR Book 21077, Page 809, Instrument No. 2020208528).

14. **Due diligence.** Defendant objected to the default in writing within hours of learning of it, resubmitted her filing within the Clerk's correction window, and brings this Motion within days of the default's entry.

15. Defendant further notes the default was entered against "Brandi Rogers," a misspelling of Defendant's legal name (Brandi Lynn Rodgers) that Defendant had already corrected to Plaintiff's counsel in writing on June 30, 2026.

WHEREFORE, Defendant respectfully requests that this Court (i) set aside the Clerk's Default entered June 29, 2026; (ii) direct the Clerk to accept the Answer and Affirmative Defenses attached as Exhibit 8, with a filing date relating back to June 11, 2026, pursuant to Rule 2.525(f)(2)(A), or alternatively effective the date of this Motion; and (iii) grant such other relief as the Court deems just and proper.

Verification (§ 92.525, Fla. Stat.)

Under penalties of perjury, I declare that I have read the foregoing Motion and that the facts stated in it are true.

Dated: July ____, 2026

BRANDI LYNN RODGERS, Defendant, self-represented
13721 94th Avenue North, Seminole, Florida 33776
Telephone: (727) 621-6090
Designated email for service: Brandisreallife@gmail.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on July ____, 2026, a true and correct copy of the foregoing was furnished by the Florida Courts E-Filing Portal to: Joseph M. Murphy, Esq., Gabrielle M. Englander, Esq., and Michael D. Cavonis, Esq., DeLoach, Hofstra

& Cavonis, P.A., 8640 Seminole Blvd., Seminole, FL 33772 (jmurphy@dhclaw.com;
genglander@dhclaw.com; mcavonis@dhclaw.com).

BRANDI LYNN RODGERS